IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-III

Item No.-203
CAA-25(ND)/2020

IN THE MATTER OF:
Dibakar Clothing Limited And Kalita Apparels and marketing Limited ....**APPLICANT**

SECTION
U/s 230-232

Order delivered on 24.06.2020

CORAM:
CH. MOHD. SHARIEF TARIQ
MEMBER (JUDICIAL)
SMT SUMITA PURKAYASTHA
MEMBER (TECHNICAL)

PRESENT:
For the Applicant : Mr. Vijay Kumar Gupta, CA
For the RD and OL : Ms. Tania Sharma, Co. Prosecutor
For Income tax Deptt : Mr. Abhishek Maratha, Counsel
For the Intervener :

ORDER

Counsel for the Petitioner is present. Counsel for the Regional Director/OL is present. Counsel for Income tax Department is present. It is submitted by the Counsel for the Income tax Department that Search & Seizure has been conducted by the Investigating Wing of Income tax Department and it has been found that there are 200 Companies which are Shell Companies and during the period of de-monetization, the money has been transferred by the Companies to other Companies. The report from the Investigation Wing will be shared with the Counsel for RD and OL and the Petitioner. The RD and OL shall file an Affidavit in the light of the report of the Investigating Agencies and the Petitioner will have also an opportunity to file a detailed affidavit in response to the report. The Income tax Department is given only two weeks to share the report with the Petitioner and the RD & OL.

List on 20.7.2020.

(SUMITA PURKAYASTHA)
MEMBER (TECHNICAL)

(CH. MOHD. SHARIEF TARIQ)
MEMBER (JUDICIAL)

Surjit